

EXHIBIT 1

THE SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
Eddie Badia,

Plaintiff,

-against-

**VERIFIED COMPLAINT
AND DEMAND FOR A
JURY TRIAL**

The City of New York, New York City Police Department Detective ("Dt.") Dt. Kevin Roy (Shield No. 7601), Sgt. Neil Nappi (Shield No. 4050), Lt. James Curry, P.O. Brian Jay (Shield No. 29733), Dt. John Hourican (Shield No. 6119), Dt. Earl Williams (Shield No. 4616), P.O. Mike Hernandez (Shield No. 5046), Captain Gerard Staples, Inspector FNU Cully, Dt. FNU Booper, John Does 1 – 10 (the name "John Doe" being fictitious as the true names of said officers are currently not known),

Defendants.
-----X

INDEX No. 304153-15

Eddie Badia, by his attorneys, Rankin & Taylor, PLLC, for his Verified Complaint, alleges as follows:

INTRODUCTION

1. Eddie Badia ("Badia") brings this action pursuant to 42 U.S.C. §§ 1983, 1988, and the laws of the State of New York to redress the violation of his rights protected by the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES AND JURISDICTION

2. At all times hereinafter mentioned, Eddie Badia was a resident of Passaic County in the State of New Jersey.

3. Defendant City of New York (the "City") is and was a municipal corporation organized pursuant to the laws of the State of New York. It has all the powers vested in it by the laws of the State of New York, the City of New York and the Charter of the City of New York. At all times relevant herein, it was the employer of the individually-named defendants.

4. At all times hereinafter mentioned, Defendants New York City Police Department Detective (“Dt.”) Kevin Roy (Shield No. 7601), Sergeant (“Sgt.”) Neil Nappi (Shield No. 4050), Lieutenant (“Lt.”) James Curry, Police Officer (“P.O.”) Brian Jay (Shield No. 29733), Dt. John Hourican (Shield No. 6119), Dt. Earl Williams, (Shield No. 4616), P.O. Mike Hernandez, (Shield No. 5046), Captain Gerard Staples, Inspector FNU Cully, Detective FNU Booper, and P.O. John Doe 1 through John Doe 10 (collectively the “individual defendants”) were acting as agents of the City of New York within the course and scope of their duties and functions of employment by the New York Police Department (“NYPD”) and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties.

5. The individual defendants were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and/or employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and/or agents of the NYPD.

6. The individual defendants are sued in their individual capacity.

7. The individual defendants’ acts hereafter complained of were carried out intentionally, recklessly, with malice and gross disregard for Plaintiff’s rights.

8. At all relevant times, the defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

9. The true names and shield numbers of defendants P.O. JOHN DOE’s 1-10 are not currently known to the Plaintiff.¹ However, they were employees or agents of the NYPD on the

¹ By identifying said defendants as “John Doe,” plaintiff is making no representations as to the gender of said defendants.

date of the incident. Accordingly, they are entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that plaintiff intends to name said officers as defendants in an amended pleading once the true name and shield number of said defendants becomes known and (b) that the Law Department should immediately begin preparing their defense in this action.

VENUE

10. Venue is properly laid in the Supreme Court of the State of New York, County of Bronx because the torts originated in the County of Bronx.

ADMINISTRATIVE PREREQUISITES

11. Mr. Badia filed a timely Notice of Claim with defendant City in the Office of the City Comptroller, in accordance with the General Municipal Law.

12. At least thirty days have elapsed since plaintiff filed his Notice of Claim and adjustment or payment thereof has been neglected or refused.

STATEMENT OF FACTS

13. The acts herein described occurred principally in the early afternoon hours of September 29, 2003 at and around 886 East 149th Street, in Bronx County.

14. Mr. Badia was leasing a garage at the above location.

15. Mr. Badia received a phone call from Orlando Colon ("Colon") informing him that the gate to his garage was stuck and the truck he had granted permission to park in the garage could not pass through the gate. Further, Colon requested that Mr. Badia fix the gate.

16. At approximately 5:30 P.M., Mr. Badia returned to the garage and fixed the gate.

17. Shortly thereafter, the individual defendants arrived and arrested Mr. Badia and others for possession of a controlled substance.

18. Mr. Badia did not possess a controlled substance and was wholly innocent of the charges he was accused of.

19. The individual defendants fabricated evidence and provided false information to members of the District Attorney's Office.

First Trial

20. In November of 2005, these charges were presented at trial.

21. No verdict was reached with respect to Mr. Badia and a mistrial was granted on November 22, 2005.

Second Trial

22. In May of 2006, the charges were re-tried.

23. Mr. Badia was found guilty on May 16, 2006 and subsequently sentenced to 25 years to life in prison.

24. Mr. Badia appealed and his appeal was successful and he was granted a new trial.

Third Trial

25. In May and June of 2014, the charges were re-tried.

26. On June 2, 2014, Mr. Badia was fully acquitted of the charges against him.

27. Mr. Badia was incarcerated throughout this process.

**FIRST CLAIM FOR RELIEF
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983
(Against Individual Defendants)**

28. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

29. Individual defendants, under color of state law, subjected the plaintiff to the foregoing acts and omissions, thereby depriving plaintiff of his rights, privileges and immunities secured by the Fourth and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable seizure of his person; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment; (d) freedom from the lodging of false charges against him by police officers; (e) freedom from having police officers fabricate evidence against him; (f) freedom from malicious prosecution; and (g) freedom from abuse of process.

30. Individual defendants' deprivation of plaintiff's constitutional rights resulted in the injuries and damages set forth above.

SECOND CLAIM FOR RELIEF
LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL VIOLATIONS
(Against the City of New York)

31. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

32. All of the acts and omissions by the named and unnamed individual police officer defendants described above were carried out pursuant to overlapping policies and practices of the City of New York which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of the defendant City and its agency, the NYPD.

33. Defendant City and the NYPD, by their policy-making agents, servants and employees, authorized, sanctioned and/or ratified the individual police defendants' wrongful acts; and/or failed to prevent or stop those acts; and/or allowed or encouraged those acts to continue.

34. The defendants arrested and incarcerated the plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.

35. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to customs, policies, usages, practices, procedures and rules of the City and the NYPD, all under the supervision of ranking officers of the NYPD.

36. The aforementioned customs, practices, procedures and rules of the City and the NYPD include, but are not limited to, the following unconstitutional practices:

- a. Falsely swearing out criminal complaints, and/or lying and committing perjury during sworn testimony in order to protect other officers; and
- b. Failing to intervene to prevent the above-mentioned practices when they reasonably could have been prevented by a supervisor or other agent or employee of the NYPD.

37. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following civil rights actions filed against the City:

- a. *Long v. City of New York*, United States District Court, Southern District of New York, 09 Civ. 9216 (AKH) (officer who purposefully swore out a false complaint and used excessive force is prosecuted for perjury and for recklessly using physical force; the Plaintiff was engaged in expressive conduct, *to wit*, riding in a Critical Mass bicycle ride, when he was assaulted by the officer);
- b. *Lin v. City of New York*, United States District Court, Southern District of New York, 09 Civ. 1936 (PGG) (officers arrest person lawfully photographing an arrest in Times Square and swear out a criminal complaint whose facts are contradicted by video evidence);
- c. *Colon v. City of New York*, United States District Court, Eastern District of New York, 09 Civ. 00008. In an Order dated November 25, 2009, which denied the City's motion to dismiss on *Iqbal/Twombly* grounds, wherein the police officers at issue were fired and prosecuted for falsifying evidence in a purported buy-and-bust operation, the Honorable District Court Judge Weinstein wrote:

Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officer of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration – through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department – there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the City approving illegal conduct of the kind now charged.

- d. *Callaghan v. City of New York*, United States District Court, Southern District of New York, 07 Civ. 9611 (PKC) (officers accused of falsifying evidence and retaliatory arrests of bicyclists engaged in expressive conduct, *to wit*, riding in Critical Mass bicycle rides after the 2004 Republican National Convention);
- e. *MacNamara v. City of New York*, United States District Court, Southern District of New York, 04 Civ. 9216 (RJS) (JCF) (evidence of perjured sworn statements systematically provided by officers to attempt to cover-up or justify unlawful mass arrests of approximately 1800 people has been and continues to be developed in the consolidated litigation arising out of the 2004 Republican National Convention);
- f. *McMillan v. City of New York*, United States District Court, Eastern District of New York, 04 Civ. 3990 (FB) (RML) (officers fabricated evidence and used excessive force against an African-American man in Kings County and initiated drug charges against him, despite an absence of any quantum of suspicion);
- g. *Avent v. City of New York*, United States District Court, Eastern District of New York, 04 Civ. 2451 (CBA) (CLP) (same);
- h. *Smith v. City of New York*, United States District Court, Eastern District of New York, 04 Civ. 1045 (RRM) (JMA) (same);
- i. *Allen v. City of New York*, United States District Court, Southern District of New York, 03 Civ. 2829 (KMW) (GWG) (police surround and arrest groups of persons lawfully protesting against the policies of the World Economic Forum; numerous police officers falsely swear that they gave orders to disperse; and, even if they had given such orders, the police provided no place of egress for the protestors to disperse);

j. *Dotson v. City of New York*, United States District Court, Southern District of New York, 03 Civ. 2136 (RMB) (officers arrest and use excessive force against a candidate for City Council for trespassing in his own residential building);

k. *Richardson v. City of New York*, United States District Court, Eastern District of New York, 02 Civ. 3651 (JG) (CLP) (officers fabricated evidence, including knowingly false sworn complaints, and used excessive force against an African-American man in Kings County and initiated drug charges against him, despite an absence of any quantum of suspicion);

l. *Taylor v. City of New York*, United States District Court, Eastern District of New York, 01 Civ. 5750 (ILG) (MDG) (same, except without the excessive force; judge at the criminal trial acquitting Mr. Taylor noted, on the record, that he had “significant doubt” about the truthfulness of the officers who testified).

38. These cases reveal an unbroken chain of a willingness by NYPD officers to falsify evidence in order to justify baseless arrests and/or cover-up their own unlawful conduct.

39. The existence of the aforesaid unconstitutional customs and practices, **specifically with regard to the failure to supervise, train, instruct and discipline police officers and encouraging their misconduct**, are further evidenced, *inter alia*, by the following:

a. The Report of the Commission to Investigate Allegations of Police Corruption and the Anti-Corruption Procedures of the Police Department (“Mollen Commission Report”), dated July 7, 1994, states:

In the face of this problem [of corruption], the [NYPD] allowed its systems for fighting corruption virtually to collapse. It has become more concerned about the bad publicity that corruption disclosures generate than the devastating consequences of corruption itself. As a result, its corruption control minimized, ignored and at times concealed corruption rather than root it out. Such an institutional reluctance to uncover corruption is not surprising. No institution wants its reputations tainted – especially a Department that needs the public’s confidence and partnership to be effective. A weak and poorly resources anti-corruption apparatus minimizes the likelihood of such taint, embarrassment and potential harm to careers. Thus there is a strong institutional incentive to allow corruption efforts to fray and lose priority – which is exactly what the Commission uncovered. This reluctance manifested itself in every component of the Department’s corruption controls from command accountability and supervision, to investigations, police culture, training and recruitment. For at least the past decade, the system designed to

protect the Department from corruption minimized the likelihood of uncovering it.²

b. Accordingly, in 1990, the Office of the Special Prosecutor, which investigated charges of police corruption, was abolished.

c. In response to the Honorable Judge Weinstein's ruling of November 25, 2009 in *Colon v. City of New York*, 09 Civ. 00008 (E.D.N.Y.), in which he noted a "widespread... custom or policy by the City approving illegal conduct" such as lying under oath and false swearing, Commissioner Kelly acknowledged, "When it happens, it's not for personal gain. It's more for convenience."³

d. Regarding defendant City's tacit condonement and failure to supervise, discipline or provide remedial training when officers engage in excessive force, the Civilian Complaint Review Board is a City agency, allegedly independent of the NYPD, that is responsible for investigating and issuing findings on complaints of police abuse and misconduct.⁴ When it does, however, Police Commissioner Kelly controls whether the NYPD pursues the matter and he alone has the authority to impose discipline on the subject officer(s). Since 2005, during Kelly's tenure, only one-quarter of officers whom the CCRB found engaged in misconduct received punishment more severe than verbal "instructions." Moreover, the number of CCRB-substantiated cases that the NYPD has simply dropped (i.e., closed without action or discipline) has spiked from less than 4% each year between 2002 and 2006, to 35% in 2007, and approximately 30% in 2008. Alarming, the NYPD has refused to prosecute 40% of the cases sent to it by the CCRB in 2009.⁵ As a result, the percentage of cases where the CCRB found misconduct but where the subject officers were given only verbal instructions or the matter was simply dropped by the NYPD rose to 66% in 2007. Substantiated complaints of excessive force against civilians accounted for more

² Mollen Commission Report, pp. 2-3, available at http://www.parc.info/client_files/Special%20Reports/4%20-%20Mollen%20Commission%20-%20NYPD.pdf.

³ See, Yaniv, Oren and Marzulli, John, *Kelly Shrugs Off Judge Who Slammed Cops*, New York Daily News, December 2, 2009, available at http://www.nydailynews.com/news/ny_crime/2009/12/02/2009-12-02_kelly_shrugs_off_judge_who_rips_lying_cops.html.

⁴ In 2006, out of more than 10,000 allegations that were fully investigated, the CCRB substantiated only 594 (about 6%). In 2007, out of more than 11,000 allegations that were fully investigated, the CCRB substantiated only 507 (about 5%). See CCRB Jan.-Dec. 2007 Status Report at p. 19, available at http://www.nyc.gov/html/ccrb/pdf/ccrbann2007_A.pdf. Upon information and belief, the low rate of substantiated complaints is due in part to the above-noted *de facto* policy and/or well-settled and widespread custom and practice in the NYPD whereby officers refuse to report other officers' misconduct or tell false and/or incomplete stories, *inter alia*, in sworn testimony and statements given to the CCRB, to cover-up civil rights violations perpetrated by themselves or fellow officers, supervisors and/or subordinates.

⁵ See, Hauser, Christine, *Few Results for Reports of Police Misconduct*, New York Times, October 5, 2009, at A19.

than 10% of the cases that the NYPD dropped in 2007 and account for more than 25% of cases dropped in 2008.⁶

40. The existence of the above-described unlawful *de facto* policies and/or well-settled and widespread customs and practices is known to, encouraged and/or condoned by supervisory and policy-making officer and officials of the NYPD and the City, including, without limitation, Commissioner Kelly.

41. The existence of the aforesaid unconstitutional customs and practices, **specifically with regard to the practice or custom of officers lying under oath, falsely swearing out criminal complaints, or otherwise falsifying or fabricating evidence**, are further evidenced, *inter alia*, by the following:

a. The Mollen Commission concluded that police perjury and falsification of official records is probably the most common form of police corruption facing the criminal justice system. It concluded:

Regardless of the motives behind police falsifications, what is particularly troublesome about this practice is that it is widely tolerated by corrupt and honest officers alike, as well as their supervisors. Corrupt and honest officers told us that their supervisors knew or should have known about falsified versions of searches and arrests and never questioned them.⁷

[...]

What breeds this tolerance is a deep-rooted perception among many officers of all ranks within the Department that nothing is really wrong with compromising facts to fight crime in the real world. Simply put, despite the devastating consequences of police falsifications, there is a persistent belief among many officers that it is necessary and justifies, even if unlawful. As one dedicated officer put it, police officers often view falsification as, to use his words, “doing God’s work” – doing whatever it takes to get a suspected criminal off the streets. This attitude is so entrenched, especially in high-crime precincts, that when investigators confronted

⁶ See Daily News, *Editorial: City Leaders Must Get Serious About Policing the Police*, August 20, 2008.

⁷ Mollen Commission Report, p. 36.

one recently arrested officer with evidence of perjury, he asked in disbelief, "What's wrong with that? They're guilty."⁸

b. Former New York County District Attorney Robert Morgenthau has been quoted as acknowledging that, in the NYPD, there is a "code of silence," or a "code of protection" that exists among officers and that is followed carefully.

c. In 1985, former NYPD Commissioner Benjamin Ward, testifying before a State Senate Committee, acknowledged the existence of the "code of silence" in the NYPD.

d. Former NYPD Commissioner Robert Daly wrote in 1991 that the "blue wall of solidarity with its macho mores and prejudices, its cover-ups and silence, is reinforced every day in every way."

e. In late 2009, a former NYPD officer in the Bronx, Pedro Corniel, was charged with perjury for claiming to have caught a burglar "red-handed," when, in fact, two other officers had made the arrest and handed the arrest off to Mr. Corniel. The suspect was released.⁹ Moreover,

Prosecutors and NYPD Internal Affairs probers have identified as many as two dozen cases in the past year in which cops allegedly made false statements involving routine arrests when the truth would have served them just as well.

That's a significant increase over previous years, sources said. "In the past, we'd find this happening once or twice a year, and now there are a bunch of them," said one law-enforcement official.

What has the authorities particularly troubled is that officers historically have lied to cover up more serious corruption, such as the cadre of Brooklyn narcotics cops caught last year stealing drugs from dealers and masking their thievery by filing false reports about what they had seized.

But internal probers are now finding that officers appear willing to take insidious shortcuts and lie on arrest reports when they are processing even routine collars, such as grand larceny, burglaries and robberies, sources told The Post.

⁸ Mollen Commission Report, pp. 40-41.

⁹ See, Weiss, Murray, *NYPD in a Liar Storm*, New York Post, October 26, 2009, available at http://www.nypost.com/p/news/local/nypd_in_liar_storm_qazMBEm3UNJVogv4Ndeqcl.

Their reasons could range from trying to cut down on paperwork to being lazy when filling out arrest and incident reports.¹⁰

f. In 2007, former NYPD Officer Dennis Kim admitted to accepting money and sexual favors from the proprietor of a brothel in Queens County in exchange for protecting that brothel. Mr. Kim was convicted of those offenses. The 109th Precinct of the NYPD, which used to be Mr. Kim's command, is also under investigation by the United States Attorney's Office for "plant[ing] drugs on suspects and steal[ing] cash during gambling raids." The 109th Precinct is believed to be involved in a practice known as "flaking" wherein police officers plant drugs on suspects in order to bring legitimacy to an arrest. According to Assistant United States Attorney Monica Ryan, members of the 109th Precinct "maintained a small stash of drugs in an Altoids tin for this purpose."¹¹

g. The City recently settled a civil rights lawsuit wherein one Officer Sean Spencer¹² falsely arrested and accused a 41-year old grandmother of prostitution, promising to pay the woman \$35,000. In court documents, Caroline Chen, the attorney representing the City in the case, admitted: "Officer Spencer falsely reported to the assistant district attorney that he saw [the Plaintiff] beckon to three male passersby and that he was aware that Plaintiff was previously arrested for [prostitution] when the Plaintiff had never been arrested for this offense." According to the attorney for the Patrolmen's Benevolent Association said that disciplinary charges against the officer are pending.¹³

42. The actions of the individual police defendants resulted from and were taken pursuant to the above-mentioned *de facto* policies and/or well-settled and widespread customs and practices of the City, which are implemented by members of the NYPD, of engaging in systematic and ubiquitous perjury, both oral and written, to cover-up federal law violations committed against civilians by either themselves or their fellow officers, supervisors and/or subordinates. They do so with the knowledge and approval of their supervisors, commanders and Commissioner

¹⁰ See, *id.*

¹¹ See Marzulli, John, *Claims of Corruption at Queens Precinct Put Crooked Cop's Sentencing on Hold*, New York Daily News, June 20, 2008, available at http://www.nydailynews.com/news/ny_crime/2008/06/20/2008-06-20_claims_of_corruption_at_queens_precinct_.html.

¹² In sum, the CITY has paid out \$80,000 to settle four (4) federal lawsuits against Officer Sean Spencer. See, Marzulli, John, *City shells out \$35G to grandmother, Monica Gonzalez, busted as hooker*, New York Daily News, January 7, 2010, available at http://www.nydailynews.com/ny_local/2010/01/08/2010-01-08_City_shells_out_35g_to_granny_busted_as_hooker.html.

¹³ See, *id.*

Raymond Kelly (“Kelly”) who all: (i) tacitly accepted and encouraged a code of silence wherein police officers refused to report other officers’ misconduct or told false and/or incomplete stories, *inter alia*, in sworn testimony, official reports, in statements to the CCRB and the Internal Affairs Bureau (“IAB”), and in public statements designed to cover for and/or falsely exonerate accused police officers; and (ii) encouraged and, in the absence of video evidence blatantly exposing the officers’ perjury, failed to discipline officers for “testilying” and/or fabricating false evidence to initiate and continue the malicious prosecution of civilians in order to cover-up civil rights violations perpetrated by themselves or fellow officer, supervisors and/or subordinates against those civilians.

43. All of the foregoing acts by defendants deprived the Plaintiff of federally protected rights, including, but limited to, the rights set for the in paragraphs 29 above.

44. Defendant City knew or should have known that the acts alleged herein would deprive the plaintiff of his rights, in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

45. Defendant City is directly liable and responsible for the acts of the individual defendants because it repeatedly and knowingly failed to properly supervise, train, instruct, and discipline them and because it repeatedly and knowingly failed to enforce the rules and regulation of the City and NYPD, and to require compliance with the Constitution and laws of the United States.

46. Despite knowledge of such unlawful *de facto* policies, practices and/or customs, these supervisory and policy-making officers and officials of the NYPD and the City, including Commissioner Kelly, did not take steps to terminate these policies, practices and/or customs, did not discipline individuals who engaged in such polices, practices and/or customs, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise

of their authority, and instead sanctioned and ratified these policies, practices and/or customs through their active encouragement of, deliberate indifference to and/or reckless disregard of the effect of said policies, practices and/or customs upon the constitutional rights of persons in the City of New York.

47. The aforementioned City policies, practices and/or customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the police misconduct detailed herein. Specifically, pursuant to the aforementioned City policies, practices and/or customs, the individual defendants felt empowered, arrest plaintiff without probable cause and then fabricate and swear to a false story to cover up their blatant violations of plaintiff's constitutional rights. Pursuant to the aforementioned City policies, practices and/or customs, defendants failed to intervene in or report other defendants' violation of plaintiff's rights or subsequent perjury.

48. Plaintiff's injuries were a direct and proximate result of the defendant City and the NYPD's wrongful *de facto* policies and/or well-settled and widespread customs and practices and of the knowing and repeated failure of the defendant City and the NYPD to properly supervise, train and discipline its police officers.

49. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of the plaintiff, as alleged herein.

50. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers and were directly responsible for the violation of the Plaintiff's constitutional rights.

**THIRD CLAIM FOR RELIEF
FALSE ARREST AND FALSE IMPRISONMENT**

UNDER THE LAWS OF THE STATE OF NEW YORK
(Against All Defendants)

51. Mr. Badia incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

52. By the actions described above, the individual defendants caused to be falsely arrested or falsely arrested Mr. Badia, without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so. The acts and conduct of the individual defendants were the direct and proximate cause of injury and damage to Mr. Badia and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

53. The conduct of the individual defendants alleged herein occurred while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, clothed with and/or invoking state power and/or authority, and, as a result, defendant City is liable to Mr. Badia pursuant to the state common law doctrine of *respondeat superior*.

54. As a result of the foregoing, Mr. Badia was deprived of his liberty and property, suffered emotional distress, humiliation, and was otherwise damaged and injured.

FOURTH CLAIM FOR RELIEF
ASSAULT AND BATTERY
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all defendants)

55. Mr. Badia incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

56. By the actions described above (including but not limited, forwarding false information to other police officers, resulting in the custodial arrest of Mr. Badia), the individual defendants

did inflict assault and battery upon Mr. Badia. The acts and conduct of individual defendants were the direct and proximate cause of injury and damage to Mr. Badia and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

57. The conduct of the individual defendants alleged herein occurred while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, clothed with and/or invoking state power and/or authority, and, as a result, defendant City is liable to Mr. Badia pursuant to the state common law doctrine of *respondeat superior*.

58. As a result of the foregoing, Mr. Badia suffered emotional distress, humiliation, and was otherwise damaged and injured.

**FIFTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all defendants)**

59. Mr. Badia incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

60. By the actions described above (including but not limited to Roy forwarding false information to fellow police officers and officials of the District Attorney's Office), the individual defendants caused a criminal proceeding to be initiated against Mr. Badia, even though there was no probable cause for an arrest or prosecution in this matter. The individual defendants maliciously caused this prosecution to be initiated in that they knew there was no probable cause for such prosecution and that they further wished to harm and punish Mr. Badia for illegitimate reasons and to cover for the individual defendants' misdeeds. The criminal case against Mr. Badia was terminated in his favor in that all charges were dismissed.

61. The conduct of the individual defendants alleged herein occurred while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant CITY, clothed with and/or invoking state power and/or authority, and, as a result, defendant CITY is liable to Mr. Badia pursuant to the state common law doctrine of *respondeat superior*.

62. As a result of the foregoing, Mr. Badia was deprived of his liberty and property, suffered emotional distress, humiliation, and was otherwise damaged and injured.

SIXTH CLAIM FOR RELIEF
ABUSE OF PROCESS
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all defendants)

63. Mr. Badia incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

64. By the conduct and actions described above, the individual defendants caused regularly issued process to be issued against Mr. Badia compelling the performance or forbearance of prescribed acts, including but not limited to causing criminal process to issue. The purpose of activating the process was intent to harm Mr. Badia without economic or social excuse or justification, and the individual defendants were seeking a collateral advantage or corresponding detriment to Mr. Badia, including but not limited to covering for their own misdeeds by causing Mr. Badia to be charged with crimes, a goal which was outside the legitimate ends of the process. The acts and conduct of the individual defendants were the direct and proximate cause of injury and damage to Mr. Badia and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

65. The conduct of the individual defendants alleged herein occurred while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers,

and/or while they were acting as agents and employees of defendant CITY, clothed with and/or invoking state power and/or authority, and, as a result, defendant CITY is liable to Mr. Badia pursuant to the state common law doctrine of *respondeat superior*.

66. As a result of the foregoing, Mr. Badia was deprived of his liberty and property, suffered emotional distress, humiliation, and was otherwise damaged and injured.

SEVENTH CLAIM FOR RELIEF
NEGLIGENT HIRING, SCREENING, SUPERVISION, AND RETENTION
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against Defendant the City of New York)

67. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

68. Defendant the City of New York negligently hired, screened, retained, supervised, and trained the individual defendants.

69. The acts and conduct of the individual defendants were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

EIGHTH CLAIM
NEGLIGENCE
(Against All Defendants)

70. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

71. The defendants, jointly and severally, negligently caused injuries, emotional distress and damage to the plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

72. As a result of the foregoing, the plaintiff was deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

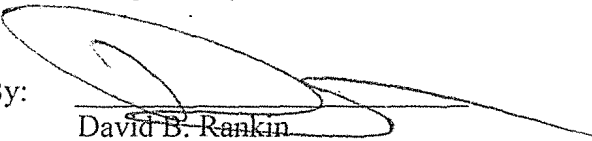
WHEREFORE, the Plaintiff demands judgment against the defendants individually and jointly and prays for relief as follows:

- a. That he be compensated for violation of his constitutional rights and State Law Torts, pain, suffering, mental anguish, and humiliation;
- b. That he be awarded punitive damages against the individual defendants;
- c. That he be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. For such other further and different relief as to the Court may seem just and proper.

Dated: September 29, 2015
New York, New York

Respectfully submitted,

By:



David B. Rankin
Rankin & Taylor, PLLC
Attorneys for the Plaintiff
11 Park Place, Ste. 914
New York, New York 10007
Ph: 212-226-4507

ATTORNEY'S VERIFICATION

I, David B. Rankin, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

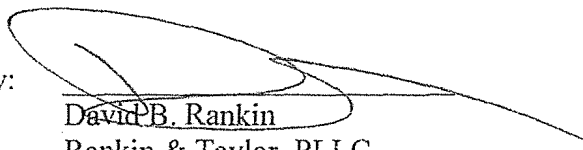
- 1) I am the attorney of record for the Plaintiff, Badia.
- 2) I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.

This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: September 29, 2015
New York, New York

Respectfully submitted,

By:



David B. Rankin
Rankin & Taylor, PLLC
Attorneys for the Plaintiff
11 Park Place, Ste. 914
New York, New York 10007
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